

25STCV07643 25STCV07643

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV07643 Hearing Date: September 18, 2026 Dept: 516

JUDGE JAMES I. MONTGOMERY

DEPARTMENT 516

Hearing Date: September 18, 2026

Case Name: Miranda v. Uber Technologies, Inc., et al.

Case No.: 25STCV07643

Motion: Motion to be Relieved as Counsel

Moving Party: Counsel for Plaintiff Nina Miranda

Opposing Party: None

Tentative Ruling: The Motion to be Relieved as Counsel is denied.

Plaintiff's counsel –LaShon Harris– seeks to be relieved as counsel of record for Plaintiff Nina Miranda. No opposition was filed.

The motion to be relieved as counsel is denied.

Discussion

An attorney is entitled to withdraw upon the consent of the client, or without that consent if approved by the court. (Code Civ. Proc., § 284; Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) In the latter case, counsel must make a motion to be

relieved as attorney of record. The motion must be made using mandatory forms: Notice of Motion and Motion to be Relieved as Counsel – Civil (MC-051), Declaration (MC-052), and Proposed Order (MC-053). (Cal. Rules of Court, rule 3.1362, subd. (a), (b), (e).)

The declaration accompanying the motion to be relieved as counsel must state “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362, subd. (b).)

The notice to the client must be delivered by personal service, electronic means, or mail. If it is done via mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration confirming the service address to be the most current residence or that it is the client's last known address, and the attorney has been unable to locate a more current address. (Cal. Rules of Court, rule 3.1362, subd. (d)(1)(A)-(B).) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).)

Here, Counsel LaShon Harris (“Counsel”) has not complied with the California Rules of Court, rule 3.1362(d). Counsel has been unable to confirm Plaintiff's last known address. The Court finds that Counsel's efforts are insufficient. Counsel must comply with the statute to properly serve Plaintiff with the motion and supporting papers.

Therefore, the Court denies Counsel's motion to be relieved as counsel.